

IN THE TWELFTH JUDICIAL CIRCUIT COURT  
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC  
HOLDINGS, LLC,

Plaintiff/Counter-Defendant,

Case No.: 2021-CA-4553

v.

Circuit Civil Division: D

LORI SKIPPER,

Defendant/Counter-Plaintiff.

**ORDER OF REFERRAL TO CIVIL MAGISTRATE**

Florida Rule of Civil Procedure 1.490(a) and current administrative orders of the Court, each as amended from time to time, permit the Court to refer matters to a general magistrate. The Court on its own motion refers the following motions and issues in this matter—whether currently filed or filed in the future—to the Honorable David Caskey, Magistrate, Twelfth Judicial Circuit (“Magistrate”) for further proceedings: *(check all that apply)*

- ☒ All discovery motions;
- ☒ All motions directed to the pleadings;
- ☒ Any motion or motions stipulated to by the parties; and
- ☐ The following issues: Enter issues or motions with DIN

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CLERK CIRCUIT COURT  
MANATEE COUNTY

The Magistrate shall assign a time and place for the proceedings as soon as reasonably practicable, and the Magistrate or one or more of the parties shall give reasonable notice to each of the parties. The Magistrate is authorized to administer oaths, conduct hearings, and take evidence. As soon as practicable, the Magistrate shall file a Report and Recommendation of Magistrate containing findings of fact, conclusions of law, and the name of the court reporter, if any. The Magistrate may require one or more of the attorneys to prepare a proposed Report and Recommendation of Magistrate.

You are advised that the Twelfth Judicial Circuit electronically records—but does not transcribe—the proceedings before the Magistrate. A party may have a court reporter transcribe the record of the proceedings at that party’s expense. Additionally, a party may hire a court reporter to attend and report the proceedings. A party retaining a court reporter must timely notify all parties.

A party requesting the assigned Judge review the Report and Recommendation of Magistrate must file timely exceptions or cross-exceptions as provided in Florida Rule of Civil Procedure 1.490(i). In addition to filing the exceptions with the Clerk of Court, the party must

email a copy of the exceptions to both the Magistrate's assistant and the assigned Judge's judicial assistant with a copy to all parties. A record, which includes a transcript, may be required to support the exceptions asserted, or your exceptions will be denied. The person seeking review must have the transcript prepared for the Court's review if necessary.

**All parties must consent to the reference to the Magistrate. See Fla. R. Civ. P. 1.490(c). You are entitled to have this matter heard by the assigned Judge. If you do not want the Magistrate to hear this matter, you must file a written objection to the referral to Magistrate with the Clerk of Court within 10 days of service of this Order, stating the reason or reasons for the objection. In addition, you *must* email a copy of the objection to both the Magistrate's assistant and the assigned Judge's judicial assistant, with a copy to all parties. If the hearing occurs within 10 days of the date of this Order, objection must be made before the hearing begins. *Failure to file a written objection within the applicable time period constitutes consent to the referral*. If a party files a timely written objection, that party must advise the assigned Judge's judicial assistant how much time is requested for the hearing.**

DONE AND ORDERED in Bradenton, Manatee County, Florida, on this 6<sup>th</sup> day of January, 2022.



Edward Nicholas  
Circuit Judge, Twelfth Judicial Circuit

***Copies furnished to parties on the attached Service List:***

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